

# The U.P. Fertilizer (Prices) (Supplementary) Order, 1974

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State of Uttar Pradesh - Act

The U.P. Fertilizer (Prices) (Supplementary) Order, 1974

UTTAR PRADESH

India

The U.P. Fertilizer (Prices) (Supplementary) Order, 1974

Rule THE-U-P-FERTILIZER-PRICES-SUPPLEMENTARY-ORDER-1974 of 1974

Published on 14 June 1974

Commenced on 14 June 1974

[This is the version of this document from 14 June 1974.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Fertilizer (Prices) (Supplementary) Order, 1974

Published vide Notification U.P. Gazette, (Extraordinary), dated 14.6.1974, vide Notification No. A-490(5) 12-5-74, dated 14.6.1976

Whereas the State Government is of opinion that it is necessary and expedient so to do for securing the availability of fertilizers at fair prices;

Now, therefore, in exercise of the powers conferred by Rule 114 of the Defence of India Rules, 1971, the Governor is pleased to make the following Order:

1.

Short title, extent and commencement.

(1)

This Order may be called the Uttar Pradesh Fertilizer (Prices) (Supplementary) Order, 1974.

(2)

It extends to the whole of Uttar Pradesh.

(3)

It shall come into force at once.

2.

Definition.

- In this Order, unless the context otherwise provides, all expressions shall have the same meaning as in the Uttar Pradesh Fertilizer (Distribution) Order, 1974.

3.

Maximum price that may be charged or retained for fertilizer carried over from May 31, 1974.

- No registered dealer shall charge or retain, or enter into or enforce any contract for charging in respect of any fertilizer sold to any person on or after June 1, 1974, from out of any stock carried over by him from May 31, 1974, a price exceeding the maximum price fixed under clause (3) of the Fertilizer (Control) Order, 1957, as it prevailed on May 31, 1974.

4.

Power of entry, search and seizure.

- Any Enforcement Officer may with a view to securing compliance with this Order or satisfying himself that this Order has been complied with-

(a)

enter with such assistance as he may think fit, any premises where he has reason to believe that any fertilizer is stored or any books of account or documents relating to the stocking or sale of fertilizer by a registered dealer are kept; or

(b)

examine and seize any books of accounts or documents which in the opinion of such officer would be useful for or relevant to any proceedings in respect of any contravention of this Order and return such books of accounts and documents to the person from whom they were seized after copies thereof or extracts therefrom, certified under his hand, have been taken.

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